

Franciscus Dylan Rosario (IN PRO PER)
7624 Melody
ROHNERT PARK, CA 94928
P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR,
DOES 1-50

Defendants and Respondents

**NOTICE OF MOTION AND SUPPLEMENTAL
REQUEST
FOR JUDICIAL NOTICE IN SUPPORT OF
APPELLANT'S REPLY BRIEF AND MOTION TO
DISREGARD MATTERS OUTSIDE THE RECORD**

Memorandum of Points and Authorities;

Declaration of Franciscus Dylan Rosario;
Exhibits A through I; proposed order filed separately

CONTENTS

Notice of Motion.....	3
Memorandum of Points and Authorities.....	7
Declaration of Franciscus Dylan Rosario	26
Certificate of Electronic Format.....	29
Exhibit Index.....	34
Proof of Service.....	31

NOTICE OF MOTION

[Cal. Rules of Court, rules 8.54, 8.252; Evid. Code, sections 451, 452, 459]

To the Honorable Presiding Justice and Associate Justices of the Court of Appeal, First Appellate District, Division Three:

PLEASE TAKE NOTICE that, pursuant to California Rules of Court, rules 8.54 and 8.252, and California Evidence Code sections 451, 452, and 459, Appellant Franciscus Dylan Rosario hereby respectfully moves this Court for an order taking judicial notice of the following statutes and official acts of the Judicial Council of California in support of Appellant's Reply Brief and Appellant's Motion to Disregard Matters Outside the Record in Respondent's Brief:

1. **Exhibit A:** California Vehicle Code section 22107 and California Vehicle Code section 21804, public statutory enactments of the State of California (Evid. Code, section 451,

subd. (a)).

2. **Exhibit B:** California Vehicle Code section 360 (definition of "highway") and California Vehicle Code section 620 (definition of "traffic"), public statutory enactments of the State of California (Evid. Code, section 451, subd. (a)).
3. **Exhibit C:** Judicial Council of California Civil Jury Instruction CACI No. 705, Turning (Veh. Code, section 22107), including its official Directions for Use and Sources and Authority, as promulgated by the Judicial Council of California (Evid. Code, section 452, subd. (c)).
4. **Exhibit D:** Judicial Council of California Civil Jury Instruction CACI No. 707, Speed Limit (Veh. Code, section 22352), and CACI No. 710, Duties of Care for Pedestrians and Drivers in Crosswalk (Veh. Code, section 21950), including official Directions for Use where published and Sources and Authority, as promulgated by the Judicial Council of California (Evid. Code, section 452, subd. (c)), and California Vehicle Code section 21950, a public statutory enactment of the State of California (Evid. Code, section 451, subd. (a)).
5. **Exhibit E:** California Code of Civil Procedure section 613, California Code of Civil Procedure section 614, and California Code of Civil Procedure section 647, public statutory

enactments of the State of California (Evid. Code, section 451, subd. (a)).

6. **Exhibit F:** California Evidence Code section 140, Evidence Code section 310, and Evidence Code section 451, public statutory enactments of the State of California (Evid. Code, section 451, subd. (a)).
7. **Exhibit G:** Judicial Council of California Civil Jury Instruction CACI No. 401, Basic Standard of Care, including official Sources and Authority, as promulgated by the Judicial Council of California (Evid. Code, section 452, subd. (c)).
8. **Exhibit H:** Judicial Council of California Civil Jury Instruction CACI No. 418, Presumption of Negligence per se, including official Directions for Use and Sources and Authority, as promulgated by the Judicial Council of California (Evid. Code, section 452, subd. (c)), and California Evidence Code section 669, a public statutory enactment of the State of California (Evid. Code, section 451, subd. (a)).
9. **Exhibit I:** California Vehicle Code section 22352, a public statutory enactment of the State of California (Evid. Code, section 451, subd. (a)).

This motion does not seek judicial notice of the certified Reporter's Transcript or Clerk's Transcript already on file in this appeal.

(*People v. Preslie* (1977) 70 Cal.App.3d 486, 493.) Judge Wong's Day 11 statements are record events in the Reporter's Transcript; they are not independent authority. This motion does not attach published California opinions. Decisional law is already subject to mandatory notice under Evidence Code section 451, subdivision (a).

This Motion is based upon this Notice, the attached Memorandum of Points and Authorities, the Declaration of Franciscus Dylan Rosario, the true and correct copies of Exhibits A through I attached hereto, and the pleadings and records on file herein.

Dated: August 20, 2026

Respectfully submitted,



/s/

Franciscus Dylan Rosario
Plaintiff and Appellant in Pro Per
7624 Melody
ROHNERT PARK, CA 94928
P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

In this appeal, the central substantive error is the trial court's categorical prohibition issued in response to deliberating Jury Question #1, ordering that the deliberating jury "may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions," justified by the express bench ruling that enacted public statutes were "not permitted to consider that as evidence in the case, period." (RT 11, p. 7, ll. 23 to 27; p. 8, ll. 4 to 9.) Those Day 11 words are facts in the Reporter's Transcript. They are not stare decisis, and this motion does not treat them as independent legal authority.

This motion places the official text of the controlling public statutes and the official Judicial Council CACI instructions before the panel because the trial court classified those statutes as "not evidence," and because Respondent's Brief placed those numbered texts in issue. It does not claim that this Court is unable to know the Vehicle Code without this filing. Evidence Code section 451, subdivision (a), and section 459 make judicial notice of California public statutory law mandatory. The attached exhibits supply the official wording that the reply brief and motion to disregard cite by exhibit letter rather than by extended block quotation.

Each exhibit's relevance showing identifies the Respondent's Brief

proposition that placed the official text in issue, so this Court may check that proposition against the official wording and the certified record. This motion notices wording. It does not brief reversal. Published California opinions Respondent cited (*Agarwal, Finn, Metcalf, Soule*) and published opinions this Court has already applied in the Reply (*People v. Moore* (1996) 44 Cal.App.4th 1323; *Daum v. SpineCare Medical Group, Inc.* (1997) 52 Cal.App.4th 1285; *Betterton v. Leichtling* (2002) 101 Cal.App.4th 749) are named only as the invocation that makes a statute or CACI form relevant; those opinions are not attached as exhibits.

This motion does not seek judicial notice of certified RT or CT already on appeal. (*People v. Preslie* (1977) 70 Cal.App.3d 486, 493 [transcripts already part of certified record need not be judicially noticed].)

II. LEGAL STANDARDS GOVERNING APPELLATE JUDICIAL NOTICE

California Evidence Code section 459, subdivision (a), provides that the reviewing court "may take judicial notice of any matter specified in Section 452" and "shall take judicial notice of each matter specified in Section 451 for which judicial notice was taken by the trial court or is mandatory under Section 451."

Under California Rules of Court, rule 8.252(a)(2), a request for judicial notice must state:

- Why the matter to be noticed is relevant to the appeal;

- Whether the matter was presented to the trial court and whether the trial court took judicial notice; and
- Whether the matter relates to proceedings after the judgment that is the subject of the appeal.

None of Exhibits A through I relates to post-judgment proceedings. Each exhibit is official public law or an official act of the Judicial Council.

III. CRC 8.252(a)(2) SHOWING FOR EACH EXHIBIT

Concordance of Respondent's invocations to official text

This table is the CRC 8.252(a)(2)(A) relevance index. It is not a merits brief. The Reply Brief applies the texts.

Exhibit	Respondent invocation (RB pin)	Why the official text is relevant
A	Form-number waiver as if only Veh. Code 22107 / CACI 705 were in play (RB 5 to 6; 10:15 to 11:11); 21804(a) quoted then abandoned	Jury Question #1 named both 22107 and 21804(a) (RT 11, p. 7). Official 22107 is turning-with-safety; official 21804(a) is yield.
B	Silent on the Q#1 / Q#2 asymmetry	Court declared Veh. Code 360 as law on Q#2 while forbidding 22107 and 21804(a) on Q#1. Section 620 defines "traffic" in 21804(a).

Exhibit	Respondent invocation (RB pin)	Why the official text is relevant
C	"Appellant did not request any jury instruction contemplating turning or CACI 705" (RB 11:6 to 11:11; 10:15 to 10:31)	Official Directions for Use: give CACI 705 only if the jury is instructed on section 22107, and read it after that section. Statute-first, form-second. The Reply applies <i>Betterton</i> (a flawed proposal does not excuse the wrong standard; <i>Betterton</i> affirmed on prejudice). <i>Betterton</i> is not attached.
D	CACI 707 is speed / 22352 so listing 707 cannot preserve 22107; "just as likely" off-record agreement (RB 5:13 to 5:18; 10:14 to 10:31)	Official titles: 707 is Speed Limit (Veh. Code 22352); 710 is crosswalk (Veh. Code 21950). Official 21950 is attached as the statute CACI 710 implements. Titles and the statute are noticed. The Reply measures that 707-versus-705 label against <i>Betterton</i> . <i>Betterton</i> is not attached. Off-record speculation is for the motion to disregard.
E	<i>Agarwal</i> / <i>Finn</i> / <i>Metcalf</i> / <i>Gregory</i> : no sua sponte duty; failure to request different instructions bars review (RB 9:37 to 10:12)	Those cites are charge-conference completeness. Section 613 is the retirement statute. Section 614 is the deliberation-stage command after Jury Question #1 (<i>Cook</i> ; <i>Nelson</i>). The Reply cites both through <i>Smith v. Shankman</i> (strict compliance with 613 and 614) and applies <i>Moore</i> (Division Three's deliberative analog). <i>Smith</i> , <i>Cook</i> , <i>Nelson</i> , and <i>Moore</i> are not attached. Section 647 independently deems instructional refusals excepted to.

Exhibit	Respondent invocation (RB pin)	Why the official text is relevant
F	The "not evidence" rationale is "simply inaccurate" (RB 11:31 to 11:33)	Sections 140, 310, and 451 define evidence, assign statutory construction to the court, and require notice of public statutes. The bench said "not permitted to consider that as evidence in the case, period" (RT 11, p. 8, ll. 4 to 9). The Reply applies <i>Moore</i> 's rule that the court may not leave a question of law to the jury. <i>Moore</i> is not attached.
G	CACI 401 equals CACI 705; omitting turning was harmless (RB 12:19 to 12:31)	Official 401 is general reasonable care. It does not contain 22107 or 21804(a). The Reply applies <i>Daum</i> (general standard does not replace an enacted duty) and <i>Drury v. Ryan</i> (2025) 109 Cal.App.5th 1102, 1112. <i>Daum</i> and <i>Drury</i> are not attached. Official Sources point to CACI 418 to 421 for statutory standards, a different instruction.
H	No negligence-per-se request based on 22107, so no instructional error (RB 11:16 to 11:26)	Official 418 is a presumption vehicle. Official Evid. Code 669 is attached as the statute CACI 418 implements. Directions for Use: negligence can still be proven by other means. Duty instruction and NPS presumption are not the same request.
I	CACI 707 "addresses Vehicle Code section 22352, not Vehicle Code section 22107" (RB 5:13 to 5:18)	Official 22352 is prima facie speed limits. Pair with Exhibit D. Completes the form-trap inversion with the statute Respondent mapped.

A. Exhibit A: Vehicle Code sections 22107 and 21804 (Evid. Code, section 451, subd. (a))

Respondent's invocation. Respondent frames the appeal as a missing CACI 705 / turning-form request and largely drops section 21804(a) after quoting Jury Question #1 (RB 5 to 6; 10:15 to 11:11).

Official text to be noticed. Vehicle Code section 22107 (turning with reasonable safety and signal) and section 21804 (yield to traffic as defined in section 620).

Relevance (CRC 8.252(a)(2)(A)). This text is relevant because Respondent placed those statute numbers in issue, then briefed a form-number waiver as if only section 22107 / CACI 705 were in play. Jury Question #1 named **both** sections and asked for instruction (RT 11, p. 7). The trial court forbade both and classified them as unadmitted evidence (RT 11, p. 8, ll. 4 to 9). This Court notices the official wording. The Reply Brief applies it.

Presented below. Yes. Those sections were presented in Plaintiff's complaint (Defense Exhibit 500; CT 1, p. 44), in Jury Question #1 (RT 11, p. 7), and during the recorded colloquy (RT 11, pp. 4 to 14). The trial court refused to instruct on them and did not take judicial notice of them as mandatory public law.

Not post-judgment. The statutes were enacted long before

judgment. Exhibit A is not a post-judgment proceeding.

B. Exhibit B: Vehicle Code sections 360 and 620 (Evid. Code, section 451, subd. (a))

Respondent's invocation. Respondent is silent on the Q#1 / Q#2 instructional asymmetry.

Official text to be noticed. Section 360 defines "highway." Section 620 defines "traffic," the term section 21804, subdivision (a), incorporates.

Relevance (CRC 8.252(a)(2)(A)). This text is relevant because the trial court supplied section 360 in response to Jury Question #2 while barring sections 22107 and 21804, subdivision (a), in response to Jury Question #1. That record event shows the court knew how to declare Vehicle Code definitions as law when it chose to. Section 620 is definitional public law that gives meaning to the yield command Respondent quoted and then abandoned.

Presented below. Section 360 was presented and used in connection with Jury Question #2. Section 21804, which incorporates section 620, was presented with Jury Question #1 and in the complaint. The trial court did not take judicial notice of section 620 as a separate definitional instruction.

Not post-judgment. Both sections were enacted by Stats. 1959, Ch. 3. Exhibit B is not a post-judgment proceeding.

C. Exhibit C: CACI No. 705, Turning (Evid. Code, section 452, subd. (c))

Respondent's invocation. "Appellant did not request any jury instruction contemplating turning or CACI 705. Accordingly, he has waived any instructional error on appeal." (RB 11:6 to 11:11; see also RB 10:15 to 10:31.)

Official text to be noticed. CACI No. 705, Turning (Veh. Code, section 22107), including official Directions for Use.

Relevance (CRC 8.252(a)(2)(A)). This text is relevant because Respondent made CACI 705 the waiver predicate. The official Directions for Use state that an instruction on this point should be given only if the jury is instructed on Vehicle Code section 22107, and that it should be read after that section has been given. That is statute-first, form-second. The deliberating jury named section 22107 (RT 11, p. 7). This Court notices the official direction. The Reply Brief applies it. The Reply measures Respondent's CACI-label theory under *Betterton v. Leichtling* (2002) 101 Cal.App.4th 749, 751: a proposed instruction, "while flawed," does not excuse a worse standard. The 707-versus-705 label is that claimed flaw. Official CACI 705's title and Directions for Use are the noticed form. *Betterton* affirmed because, on that record, the error was not prejudicial. This motion notices CACI 705's title and Directions for Use. It does not attach *Betterton*. Prejudice is briefed in the Reply.

Presented below. Vehicle Code section 22107, the statute CACI 705 implements, was presented below as alleged in the complaint, as named in Jury Question #1, and as discussed on RT 11. Whether a CACI form number was recited does not control judicial notice of the Judicial Council's official act. (*People v. Morales* (2001) 25 Cal.4th 34, 47; *Conservatorship of Gregory* (2000) 80 Cal.App.4th 514, 520.)

Not post-judgment. CACI 705 was adopted as an official act of the Judicial Council (new September 2003). Exhibit C is not a post-judgment proceeding in this case.

D. Exhibit D: CACI No. 707, Speed Limit, CACI No. 710, Duties of Care for Pedestrians and Drivers in Crosswalk, and Vehicle Code section 21950 (Evid. Code, sections 452, subd. (c), and 451, subd. (a))

Respondent's invocation. CACI 707 is titled "Speed Limit" and addresses Vehicle Code section 22352, not section 22107 (RB 5:13 to 5:18). There is "no evidence" Appellant requested CACI 705, 707, or 710, and "it is just as likely that the Court and parties discussed and agreed to the jury instructions as given" (RB 10:29 to 10:31).

Official text to be noticed. Official 2026 titles and instruction text: CACI 707, Speed Limit (Veh. Code, section 22352); CACI 710, Duties of Care for Pedestrians and Drivers in Crosswalk (Veh. Code, section 21950). Official Vehicle Code section 21950, the

public statute CACI 710 implements.

Relevance (CRC 8.252(a)(2)(A)). This text is relevant because Respondent placed those CACI numbers in issue. The official titles confirm 707 is speed and 710 is crosswalk duty. They are not "Entry Onto Highway," not "Right-of-Way of Bicycle Rider," and not section 22107. Official section 21950 is the crosswalk-yield statute those titles name. This Court notices the official wording so RB 10:29 to 10:31 is not a vacuum the panel must take on faith. The "just as likely" sentence is extra-record speculation for the motion to disregard; it is not a fact this motion asks the Court to notice. Official CACI 707 is Speed Limit (Veh. Code, section 22352). That title is the form-number "flaw" the Reply measures under *Betterton* (Exh. C). This motion notices the official titles, the official CACI text, and official section 21950. It does not attach *Betterton*.

Presented below. Respondent placed those CACI numbers in issue in the Respondent's Brief. The Judicial Council's adoption of the instructions is an official act whether or not a CACI number was given at trial. (*Morales, supra*, 25 Cal.4th at p. 47; *Gregory, supra*, 80 Cal.App.4th at p. 520.) Vehicle Code section 21950 is public statutory law of this State.

Not post-judgment. Both instructions were first published in September 2003 (CACI 707 revised May 2020; CACI 710 revised December 2016 and May 2020). Section 21950 was amended by

Stats. 2022, Ch. 957, Sec. 8 (AB 2147), effective January 1, 2023. Exhibit D is not a post-judgment proceeding in this case.

E. Exhibit E: Code of Civil Procedure sections 613, 614, and 647 (Evid. Code, section 451, subd. (a))

Respondent's invocation. Respondent cites *Agarwal v. Johnson* (1979) 25 Cal.3d 932, 950 to 951, *Finn v. G. D. Searle & Co.* (1984) 35 Cal.3d 691, 701 to 702, and *Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1130 to 1131 (quoting *Conservatorship of Gregory, supra*, 80 Cal.App.4th at pp. 520 to 521), for the proposition that a civil court has no duty to instruct on its own motion and that failure to request different instructions bars review (RB 9:37 to 10:12).

Official text to be noticed. Code of Civil Procedure section 613 (jury retirement and the officer's charge); section 614 ("the information required must be given"); and section 647 (instructional rulings deemed excepted to).

Relevance (CRC 8.252(a)(2)(A)). This text is relevant because Respondent placed those charge-conference cases in issue as a bar to review. Exhibit E is the deliberation-stage statutory pair those citations do not displace. Section 613 governs retirement: once the case is submitted, the jurors "must be kept together" under charge of an officer who may not communicate except to ask whether they have agreed. Section 614 then commands that when jurors "desire to be informed of any point of

law," "the information required must be given." The Reply cites both through *Smith v. Shankman* (1962) 208 Cal.App.2d 177, 182 to 183, which requires "a strict compliance" with sections 613 and 614. Jury Question #1 was that event (RT 11, p. 7). Section 647 independently deems "giving an instruction, refusing to give an instruction, or modifying an instruction requested" excepted to. "No objection was necessary to preserve this claim." (*Lund v. San Joaquin Valley Railroad* (2003) 31 Cal.4th 1, 7.) Under *Cook v. Los Angeles Railway Corp.* (1939) 13 Cal.2d 591, 594 to 595 and *Nelson v. Southern Pacific Co.* (1937) 8 Cal.2d 648, 655, section 614 establishes a mandatory civil duty that prohibits wilful disregard of a deliberating jury's reasonable request for law. The Reply applies *People v. Moore* (1996) 44 Cal.App.4th 1323, 1331 to 1332 as this Court's Penal Code section 1138 analog to section 614. *Moore* affirmed where the trial court sent the jury back to an instruction that was "full and complete" on the asked point. (*Id.* at p. 1331.) That is not this record. The dual prohibition on RT 11 did not reread those duties; it forbade them. This motion notices sections 613, 614, and 647. It does not attach *Smith*, *Cook*, *Nelson*, or *Moore*. This Court notices those sections. Whether *Agarwal*, *Finn*, and *Metcalf* can override them is briefed in the Reply. Those opinions are not attached.

Presented below. The instructional refusal occurred on RT 11 in response to Jury Question #1. Sections 613, 614, and 647 governed that proceeding as public law. The trial court did not

apply them as mandatory public law.

Not post-judgment. Section 613 was amended by Stats. 2011, Ch. 181, Sec. 2 (AB 141), effective January 1, 2012. Section 614 was enacted in 1872. Section 647 was amended by Stats. 1963, Ch. 99. Exhibit E is not a post-judgment proceeding.

F. Exhibit F: Evidence Code sections 140, 310, and 451 (Evid. Code, section 451, subd. (a))

Respondent's invocation. "Appellant argues that the Court based its response to Jury questions #1 on the premise that the statutes were not evidence. That is simply inaccurate." (RB 11:31 to 11:33.)

Official text to be noticed. Section 140 (definition of "evidence"); section 310, subdivision (a) (questions of law, including construction of statutes, for the court); section 451, subdivision (a) (mandatory notice of this State's public statutory law).

Relevance (CRC 8.252(a)(2)(A)). This text is relevant because Respondent put the trial court's rationale in issue by denying it. The bench said the statutes were "not part of the evidence" and "not permitted to consider that as evidence in the case, period" (RT 11, p. 8, ll. 4 to 9). The official definitions are the measure of whether "statute = unadmitted evidence" is a legal category. This Court notices the wording. The Reply Brief applies it. The Reply applies *Moore*'s holding that a reply "left the jury with the responsibility for deciding a question of law." (*People v. Moore*

(1996) 44 Cal.App.4th 1323, 1332.) Official sections 140, 310, and 451 measure that question. This motion notices those sections. It does not attach *Moore*.

Presented below. The trial court's "not evidence, period" ruling (RT 11, p. 8, ll. 4 to 9) presented the law-versus-evidence issue. The Vehicle Code sections classified as "not evidence" were before the court in the complaint and in Jury Question #1.

Not post-judgment. These Evidence Code sections were enacted or amended decades before judgment. Exhibit F is not a post-judgment proceeding.

G. Exhibit G: CACI No. 401, Basic Standard of Care (Evid. Code, section 452, subd. (c))

Respondent's invocation. Respondent quotes CACI 705 and CACI 401 and asserts that "both these instructions contain the same standard" and that "there is no substantive difference," so omitting a turning instruction was harmless (RB 12:19 to 12:31). Respondent quotes CACI 401 "in relevant part" as: "A person can be negligent by acting or by failing to act. A person is negligent if that person does something that a reasonably careful person would do in the same situation." (RB 12:21 to 12:23.)

Official text to be noticed. CACI No. 401, Basic Standard of Care, including official Sources and Authority.

Relevance (CRC 8.252(a)(2)(A)). This text is relevant be-

cause Respondent placed CACI 401 in issue as a substitute for Vehicle Code section 22107 and CACI 705. The official instruction is a general ordinary-care charge. It does not contain the turning command in section 22107 or the yield command in section 21804(a) (Exhs. A, C). Official Sources and Authority state that proper conduct may be established by statute and point to CACI Nos. 418 to 421 for negligence per se, a different instruction (Exh. H). Jury Question #1 asked for the numbered statutes, not for another general-care paraphrase (RT 11, p. 7). The official wording is before the Court so Respondent's "relevant part" quotation can be checked against the Judicial Council text. This request notices that wording. Equivalence and prejudice are briefed in the Reply. The Reply applies *Daum v. SpineCare Medical Group, Inc.* (1997) 52 Cal.App.4th 1285, 1293 to 1294, 1318 to 1319: a general standard does not replace an enacted duty. This motion notices CACI 401. It does not attach *Daum*.

Presented below. Respondent placed CACI 401 in issue in the Respondent's Brief. The Judicial Council's adoption is an official act whether or not the form number was recited at trial. (*Morales, supra*, 25 Cal.4th at p. 47; *Gregory, supra*, 80 Cal.App.4th at p. 520.)

Not post-judgment. CACI 401 was adopted as an official act of the Judicial Council (new September 2003; revised May 2020). Exhibit G is not a post-judgment proceeding in this case.

H. Exhibit H: CACI No. 418, Presumption of Negligence per se, and Evidence Code section 669 (Evid. Code, sections 452, subd. (c), and 451, subd. (a))

Respondent's invocation. "Appellant made no request or mention of a negligence per se based upon violation of Vehicle Code 22107 in his proposed jury instructions. ... Appellant simply failed to request a per se instruction and cannot now argue unequal application of the law." (RB 11:16 to 11:26.)

Official text to be noticed. CACI No. 418, Presumption of Negligence per se, including official Directions for Use. Official Evidence Code section 669, the public statute CACI 418 implements.

Relevance (CRC 8.252(a)(2)(A)). This text is relevant because Respondent recast a duty-instruction appeal as a missing-presumption appeal. Official CACI 418 is an Evidence Code section 669 **presumption** vehicle. Official section 669 is that presumption: failure to exercise due care is presumed if the four listed elements are proved, and the presumption may be rebutted as subdivision (b) provides. Its Directions for Use state that if the presumption elements are not established, "negligence can still be proven by other means." A missing CACI 418 request does not erase Vehicle Code sections 22107 and 21804(a) as rules of decision after Jury Question #1 named them (RT 11, p. 7; Exh. A). This Court notices the official form Respondent did not

attach, and the official statute that form implements. The Reply Brief applies the duty / presumption distinction.

Presented below. Respondent placed the negligence-per-se doctrine in issue in the Respondent's Brief. The Judicial Council's adoption is an official act. (*Morales, supra*, 25 Cal.4th at p. 47; *Gregory, supra*, 80 Cal.App.4th at p. 520.) Evidence Code section 669 is public statutory law of this State.

Not post-judgment. CACI 418 was adopted as an official act of the Judicial Council (new September 2003; revised through November 2020). Section 669 was added by Stats. 1967, Ch. 650. Exhibit H is not a post-judgment proceeding in this case.

I. Exhibit I: Vehicle Code section 22352 (Evid. Code, section 451, subd. (a))

Respondent's invocation. "CACI 707 is titled 'Speed Limit' and addresses Vehicle Code section 22352, not Vehicle Code section 22107" (RB 5:13 to 5:18).

Official text to be noticed. Vehicle Code section 22352, currently operative prima facie speed limits.

Relevance (CRC 8.252(a)(2)(A)). This text is relevant because Respondent mapped CACI 707 to section 22352 as the reason a 707 listing cannot preserve a 22107 turning claim. Official section 22352 is a schedule of prima facie **speed** limits (15 mph / 25 mph conditions). It is not a turning statute and not

section 22107 (Exh. A). Pair with Exhibit D. This Court notices the statute Respondent named. Form versus substance after Jury Question #1 is briefed in the Reply.

Presented below. Respondent placed section 22352 in issue by mapping CACI 707 to it. The statute is public law. CACI 707 was discussed in connection with the proposed-instruction list (AugCT, Exh. A) and at RB 5:13 to 5:18 and 10:14 to 10:31.

Not post-judgment. The currently operative text was amended by Stats. 2025, Ch. 555, Sec. 1, effective January 1, 2026, and remains in effect until January 1, 2031. The later-operative version added by Sec. 2 is not attached. Exhibit I is not a post-judgment proceeding in this case.

IV. CONCLUSION

For the foregoing reasons, Appellant Franciscus Dylan Rosario respectfully requests that this Court grant this Supplemental Request for Judicial Notice and take judicial notice of Exhibits A through I pursuant to Evidence Code sections 451, 452, and 459, and California Rules of Court, rule 8.252.

Dated: August 20, 2026

Respectfully submitted,



/s/
Franciscus Dylan Rosario

Plaintiff and Appellant in Pro Per
7624 Melody
ROHNERT PARK, CA 94928
P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

DECLARATION OF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff and Appellant in pro per in Court of Appeal Case No. A173827 (*Rosario v. Abdelhalim, et al.*), appealing from the judgment entered in San Francisco County Superior Court Case No. CGC-21-594102. I have personal knowledge of the facts set forth herein and, if called as a witness, could and would competently testify thereto.
2. Attached hereto as **Exhibit A** are true and correct copies of California Vehicle Code sections 22107 and 21804 as enacted and published by the State of California.
3. Attached hereto as **Exhibit B** are true and correct copies of California Vehicle Code sections 360 and 620 as enacted and published by the State of California.
4. Attached hereto as **Exhibit C** is a true and correct copy of Judicial Council of California Civil Jury Instruction CACI No. 705, Turning (Veh. Code, section 22107), including its official Directions for Use and Sources and Authority, transcribed from the Judicial Council's 2026 edition.
5. Attached hereto as **Exhibit D** are true and correct copies of Judicial Council of California Civil Jury Instructions CACI

No. 707, Speed Limit (Veh. Code, section 22352), and CACI No. 710, Duties of Care for Pedestrians and Drivers in Crosswalk (Veh. Code, section 21950), including official Directions for Use where published and Sources and Authority, transcribed from the Judicial Council's 2026 edition, and of California Vehicle Code section 21950 as enacted and published by the State of California.

6. Attached hereto as **Exhibit E** are true and correct copies of California Code of Civil Procedure sections 613, 614, and 647 as enacted and published by the State of California.
7. Attached hereto as **Exhibit F** are true and correct copies of California Evidence Code sections 140, 310, and 451 as enacted and published by the State of California.
8. Attached hereto as **Exhibit G** is a true and correct copy of Judicial Council of California Civil Jury Instruction CACI No. 401, Basic Standard of Care, including official Sources and Authority, transcribed from the Judicial Council's 2026 edition.
9. Attached hereto as **Exhibit H** are true and correct copies of Judicial Council of California Civil Jury Instruction CACI No. 418, Presumption of Negligence per se, including official Directions for Use and Sources and Authority, transcribed from the Judicial Council's 2026 edition, and of California

Evidence Code section 669 as enacted and published by the State of California.

10. Attached hereto as **Exhibit I** is a true and correct copy of California Vehicle Code section 22352 as currently in force and published by the State of California.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 20th day of August, 2026, at Rohnert Park, California.



/s/

Franciscus Dylan Rosario

Declarant / Appellant in Pro Per

7624 Melody

ROHNERT PARK, CA 94928

P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

CERTIFICATE OF ELECTRONIC FORMAT

I certify that this document complies with California Rules of Court, rules 8.74, 8.54, and 8.252, as follows:

1. The document is produced on letter-size paper (8.5 by 11 inches).
2. The body uses 14-point type with 1.5 line spacing.
3. The left and right margins are at least 1.5 inches. The top and bottom margins are at least 1 inch.
4. Tables use at least 13-point type.
5. Page numbering is consecutive Arabic numerals beginning with the cover as page 1 (Cal. Rules of Court, rule 8.74(a)(2)).
6. The electronic filing contains bookmarks to each heading, component, and exhibit (Cal. Rules of Court, rule 8.74(a)(3)).
7. This filing is a motion and request for judicial notice under rules 8.54 and 8.252. It is not a brief produced under rule 8.204. It contains no attachment under rule 8.204(d). This certificate is not a word-count certificate under rule 8.204(c).

Dated: August 20, 2026



/s/

Franciscus Dylan Rosario

Plaintiff and Appellant in Pro Per

7624 Melody

ROHNERT PARK, CA 94928

P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

PROOF OF SERVICE

I, Franciscus Dylan Rosario, declare:

I am over the age of 18 years. I am the Plaintiff and Appellant in this action, appearing in propria persona. My mailing address is:

7624 Melody

ROHNERT PARK, CA 94928

On August 20, 2026, I served the foregoing document described as:

APPELLANT'S NOTICE OF MOTION AND SUPPLEMENTAL REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF APPELLANT'S REPLY BRIEF AND MOTION TO DISREGARD MATTERS OUTSIDE THE RECORD IN RESPONDENT'S BRIEF; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF FRANCISCUS DYLAN ROSARIO; CERTIFICATE OF ELECTRONIC FORMAT; EXHIBITS A THROUGH I

The proposed order is filed concurrently as a separate document.

on the interested parties in this action as follows:

BY ELECTRONIC SERVICE (TRUEFILING):

Pursuant to California Rules of Court, rules 8.25, 8.71, and 8.78,

I caused the document to be electronically served through True-Filing to the following registered counsel:

Rebekah A. Morrissey, Esq.

KOYAMA & COSTELLO

P.O. Box 24508

Oakland, CA 94623-1508

Attorneys for Defendant and Respondent Subhi Abdelhalim, individually, and dba Sonoma Liquor

BY FIRST CLASS MAIL (SUPERIOR COURT):

Pursuant to California Rules of Court, rule 8.212(c)(1), I placed a true copy thereof enclosed in a sealed envelope with postage thereon fully prepaid in the United States mail at Rohnert Park, California, addressed as follows:

Clerk of the Court

San Francisco County Superior Court

400 McAllister Street

San Francisco, CA 94102

for delivery to Hon. Garrett L. Wong

I declare under penalty of perjury under the laws of the State of

California that the foregoing is true and correct.

Executed on August 20, 2026, at Rohnert Park, California.



/s/

Franciscus Dylan Rosario

Declarant / Appellant in Pro Per

7624 Melody

ROHNERT PARK, CA 94928

P: 650.488.7510 / E: SOLTRINOX@GMAIL.COM

EXHIBIT INDEX

This index lists each attached exhibit by letter, official title, and the page on which that exhibit begins. Numbering is consecutive Arabic from the cover as page 1 (Cal. Rules of Court, rule 8.74(a)(2)). This index is the printed counterpart of the CRC 8.74(a)(3) exhibit bookmarks. It is not a second memorandum. The CRC 8.252(a)(2) relevance showing remains the concordance table in the memorandum.

Letter	Official title	Start page
A	California Vehicle Code sections 22107 and 21804	35
B	California Vehicle Code sections 360 and 620	38
C	Judicial Council CACI No. 705, Turning (Veh. Code, section 22107)	40
D	Judicial Council CACI No. 707, Speed Limit (Veh. Code, section 22352), CACI No. 710, Duties of Care for Pedestrians and Drivers in Crosswalk (Veh. Code, section 21950), and California Vehicle Code section 21950	43
E	California Code of Civil Procedure sections 613, 614, and 647	52
F	California Evidence Code sections 140, 310, and 451	56
G	Judicial Council CACI No. 401, Basic Standard of Care	60
H	Judicial Council CACI No. 418, Presumption of Negligence per se, and California Evidence Code section 669	63
I	California Vehicle Code section 22352	69

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT A

California Vehicle Code sections 22107 and 21804

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov). Enactment parentheticals are
those published with the official section text.

Vehicle Code section 22107

Vehicle Code - VEH

DIVISION 11. RULES OF THE ROAD | CHAPTER 6. Turning and Stopping and Turning Signals

22107.

No person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety and then only after the giving of an appropriate signal in the manner provided in this chapter in the event any other vehicle may be affected by the movement.

(Amended by Stats. 1959, Ch. 1996.)

Vehicle Code section 21804

Vehicle Code - VEH

DIVISION 11. RULES OF THE ROAD | CHAPTER 4. Right- of-Way

21804.

- (a) The driver of any vehicle about to enter or cross a highway from any public or private property, or from an alley, shall yield the right-of-way to all traffic, as defined in Section 620, approaching on the highway close enough to constitute an immediate hazard, and shall continue to yield the right-of-way to that traffic until he or she can proceed with reasonable

safety.

- (b) A driver having yielded as prescribed in subdivision (a) may proceed to enter or cross the highway, and the drivers of all other vehicles approaching on the highway shall yield the right-of-way to the vehicle entering or crossing the intersection.

(Amended by Stats. 1988, Ch. 623, Sec. 5.)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT B

California Vehicle Code sections 360 and 620

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov). Section 620 retrieved August
19, 2026. Enactment parentheticals are those published with the
official section text.

Vehicle Code section 360

Vehicle Code - VEH

DIVISION 1. WORDS AND PHRASES DEFINED [100 - 681]

360.

"Highway" is a way or place of whatever nature, publicly maintained and open to the use of the public for purposes of vehicular travel. Highway includes street.

(Enacted by Stats. 1959, Ch. 3.)

Vehicle Code section 620

Vehicle Code - VEH

DIVISION 1. WORDS AND PHRASES DEFINED [100 - 681]

(Division 1 enacted by Stats. 1959, Ch. 3.)

620.

The term "traffic" includes pedestrians, ridden animals, vehicles, street cars, and other conveyances, either singly or together, while using any highway for purposes of travel.

(Enacted by Stats. 1959, Ch. 3.)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT C

Judicial Council of California Civil Jury Instruction CACI No.
705, Turning (Veh. Code, section 22107), including Directions for
Use and Sources and Authority

Notice basis: Evidence Code, section 452, subdivision (c).

Source: Judicial Council of California Civil Jury Instructions
(2026 edition), as adopted by the Judicial Council December 2025,
official PDF hosted at courts.ca.gov, instruction beginning at PDF
page 629. Secondary Sources (treatise lists) are omitted. Ligatures
and en dashes in the source PDF are rendered in ASCII.

705. Turning (Veh. Code, section 22107)

A driver must use reasonable care when turning [or moving to the right or to the left].

New September 2003

Directions for Use

An instruction on this point should be given only if the jury is instructed on Vehicle Code section 22107. It should be read after that section has been given. (Anderson v. Latimer (1985) 166 Cal.App.3d 667, 672 to 673 [212 Cal.Rptr. 544].)

Sources and Authority

- Turning and Changing Lanes. Vehicle Code section 22107.
- "This provision does not require the driver to know that a turn can be made with safety but only that he must exercise reasonable care, and whether such care has been exercised is normally a question of fact." (Butigan v. Yellow Cab Co. (1958) 49 Cal.2d 652, 656 [320 P.2d 500].)
- Courts have held that a reading of section 22107 should be followed by an instruction clarifying that the driver is under a duty to exercise only as much care as a reasonably prudent person when making a turn or movement: "An instruction to a jury concerning Vehicle Code, section 544 [now 22107] must make it clear that the driver who is about to turn must exercise such care as would a reasonably prudent man

under similar circumstances, no more and no less." (Lewis v. Franklin (1958) 161 Cal.App.2d 177, 184 [326 P.2d 625].)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT D

Judicial Council of California Civil Jury Instructions CACI No. 707, Speed Limit (Veh. Code, section 22352), and CACI No. 710, Duties of Care for Pedestrians and Drivers in Crosswalk (Veh. Code, section 21950), including Directions for Use (where published) and Sources and Authority, and California Vehicle Code section 21950

Notice basis: Evidence Code, section 452, subdivision (c) (CACI Nos. 707 and 710); Evidence Code, section 451, subdivision (a) (Veh. Code, section 21950).

Source: Judicial Council of California Civil Jury Instructions (2026 edition), as adopted by the Judicial Council December 2025, official PDF hosted at courts.ca.gov. CACI 707 begins at PDF page 632. CACI 710 begins at PDF page 636. Official titles are as published in that edition. Secondary Sources (treatise lists) are omitted. Ligatures and en dashes in the source PDF are rendered in ASCII. The 2026 Judicial Council edition does not include a separate Directions for Use paragraph for CACI No. 707. Vehicle Code section 21950 is the currently operative public statutory text from California Legislative Information (leginfo.legislature.ca.gov).

Enactment parentheticals are those published with the official section text.

707. Speed Limit (Veh. Code, section 22352)

The speed limit where the accident occurred was [insert number] miles per hour.

The speed limit is a factor to consider when you decide whether or not [name of plaintiff/name of defendant] was negligent. A driver is not necessarily negligent just because the driver was driving faster than the speed limit. However, a driver may be negligent even if the driver was driving at or below the speed limit.

New September 2003; Revised May 2020

Sources and Authority

- Speed Limits. Vehicle Code section 22352.
- Speeding as Negligence. Vehicle Code section 40831.
- A party is entitled to an instruction that the prima facie speed limit is a factor for the jury to consider in making its negligence determination. (*Hardin v. San Jose City Lines, Inc.* (1953) 41 Cal.2d 432, 439 [260 P.2d 63].)
- "The mere driving of an automobile in excess of the speed limit does not show negligence as a matter of law. The jury was free to find [defendant] not guilty of negligence even if they found that he was exceeding the speed limit." (*Williams v. Cole* (1960) 181 Cal.App.2d 70, 74 [5 Cal.Rptr. 24], internal citations omitted.)

- The burden of proving negligence in a civil action is on the party charging negligence, and even if such party has established speed in excess of the applicable prima facie limit the party must establish negligence under the circumstances. (Faselli v. Southern Pacific Co. (1957) 150 Cal.App.2d 644, 648 [310 P.2d 698].)
- "Even though the Texaco truck was traveling at a speed less than the maximum specified in the Vehicle Code, the reasonableness of its speed was a question of fact under all the circumstances, and circumstances may make travel at a speed less than the maximum rate a negligent operation of a motor vehicle." (Scott v. Texaco, Inc. (1966) 239 Cal.App.2d 431, 436 to 437 [48 Cal.Rptr. 785], internal citations omitted.)

710. Duties of Care for Pedestrians and Drivers in Crosswalk (Veh. Code, section 21950)

A driver of a vehicle must yield the right-of-way to a pedestrian who is crossing the roadway within any marked crosswalk or within any unmarked crosswalk at an intersection. When approaching a pedestrian who is within any marked or unmarked crosswalk, a driver must use reasonable care and must reduce the vehicle's speed or take any other action necessary to ensure the safety of the pedestrian.

Pedestrians must also use reasonable care for their own safety.

Pedestrians may not suddenly leave a curb or other place of safety and walk or run into the path of a vehicle that is so close as to constitute an immediate hazard. Pedestrians also must not unnecessarily stop or delay traffic while in a marked or unmarked crosswalk.

The failure of a pedestrian to exercise reasonable care does not relieve a driver of a vehicle from the duty of exercising reasonable care for the safety of any pedestrian within any marked crosswalk or within any unmarked crosswalk at an intersection.

New September 2003; Revised December 2016, May 2020

Directions for Use

This instruction sets forth the respective duties of drivers and pedestrians in a crosswalk. (See Veh. Code, section 21950.) Crosswalk accidents often present a comparative negligence analysis based on the statutory duties of both parties.

Sources and Authority

- Right-of-Way at Crosswalks. Vehicle Code section 21950.
- Vehicles Stopped for Pedestrians at Crosswalks. Vehicle Code section 21951.
- "Driving a motor vehicle may be sufficiently dangerous to warrant special instructions, but it is not so hazardous that it always requires 'extreme caution.' " (Menchaca v. Helms Bakeries, Inc. (1968) 68 Cal.2d 535, 544 [67 Cal.Rptr. 775,

439 P.2d 903], internal citations omitted.)

- "When the pedestrian suddenly leaves his place of safety, the vehicle must be so close as to constitute an immediate hazard. Such wording [in Veh. Code, section 21950] indicates the statute was intended to apply to those situations where a pedestrian unexpectedly asserts his right-of-way in an intersection at a time when the vehicle is so close that it is virtually impossible to avoid an accident. Typical situations include when a pedestrian steps, jumps, walks or runs directly in front of a vehicle travelling in lanes which are adjacent to the curb or other place of safety occupied by the pedestrian. Under such circumstances, the vehicle would most certainly constitute an immediate hazard to the pedestrian." (*Spann v. Ballesty* (1969) 276 Cal.App.2d 754, 761 [81 Cal.Rptr. 229], original italics.)
- "It is undisputed that defendant did not yield the right of way to plaintiff. Such failure constitutes a violation of the statute and negligence as a matter of law in the absence of reasonable explanation for defendant's conduct." (*Schmitt v. Henderson* (1969) 1 Cal.3d 460, 463 [82 Cal.Rptr. 502, 462 P.2d 30].)
- "When, as here, each motorist has acted reasonably and the pedestrian has failed to exercise due care for her own safety, the law of this state does not permit the technical violation

of the pedestrian's right of way statute to impose negligence on the motorists as a matter of law. The statute creates a preferential, but not absolute, right in favor of the pedestrian who is still under a duty to exercise ordinary care." (Byrne v. City and County of San Francisco (1980) 113 Cal.App.3d 731, 742 [170 Cal.Rptr. 302], internal citation omitted.)

- "While it is the duty of both the driver of a motor vehicle and a pedestrian, using a public roadway, to exercise ordinary care, that duty does not require necessarily the same amount of caution from each. The driver of a motor vehicle, when ordinarily careful, will be alertly conscious of the fact that he is in charge of a machine capable of projecting into serious consequences any negligence of his own. Thus his caution must be adequate to that responsibility as related to all the surrounding circumstances. A pedestrian, on the other hand, has only his own physical body to manage and with which to set in motion a cause of injury. While, usually, that fact limits his capacity to cause injury, as compared with a vehicle driver, still, in exercising ordinary care, he, too, will be alertly conscious of the mechanical power acting, or that may act, on the public roadway, and of the possible, serious consequences from any conflict between himself and such forces. And the caution required of him is measured by the possibilities of injury apparent to him in the conditions at hand, or that would be apparent to a person of ordinary

prudence in the same position." (Cucinella v. Weston Biscuit Co. (1954) 42 Cal.2d 71, 75 to 76, 81 [265 P.2d 513] [proposed jury instruction correctly stated the law].)

Vehicle Code section 21950

Vehicle Code - VEH

DIVISION 11. RULES OF THE ROAD | CHAPTER 5. Pedestrians' Rights and Duties

21950.

- (a) The driver of a vehicle shall yield the right-of-way to a pedestrian crossing the roadway within any marked crosswalk or within any unmarked crosswalk at an intersection, except as otherwise provided in this chapter.
- (b) This section does not relieve a pedestrian from the duty of using due care for their safety. No pedestrian may suddenly leave a curb or other place of safety and walk or run into the path of a vehicle that is so close as to constitute an immediate hazard. No pedestrian may unnecessarily stop or delay traffic while in a marked or unmarked crosswalk.
- (c) The driver of a vehicle approaching a pedestrian within any marked or unmarked crosswalk shall exercise all due care and shall reduce the speed of the vehicle or take any other action relating to the operation of the vehicle as necessary to safeguard the safety of the pedestrian.

(d) Subdivision (b) does not relieve a driver of a vehicle from the duty of exercising due care for the safety of any pedestrian within any marked crosswalk or within any unmarked crosswalk at an intersection.

(e) (1) A peace officer, as defined in Chapter 4.5 (commencing with Section 830) of Title 3 of Part 2 of the Penal Code, shall not stop a pedestrian for a violation of this section unless a reasonably careful person would realize there is an immediate danger of a collision with a moving vehicle or other device moving exclusively by human power.

(2) This subdivision does not relieve a pedestrian from the duty of using due care for their safety.

(3) This subdivision does not relieve a driver of a vehicle from the duty of exercising due care for the safety of any pedestrian within the roadway.

(Amended by Stats. 2022, Ch. 957, Sec. 8. (AB 2147) Effective January 1, 2023.)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT E

California Code of Civil Procedure sections 613, 614, and 647

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov). Enactment parentheticals are
those published with the official section text.

Code of Civil Procedure section 613

Code of Civil Procedure - CCP

PART 2. OF CIVIL ACTIONS | TITLE 8. OF THE TRIAL
AND JUDGMENT | CHAPTER 4. Trial by Jury | ARTICLE 2.
Conduct of the Trial

613.

When the case is finally submitted to the jury, they may decide in court or retire for deliberation. If they retire, they must be kept together in some convenient place, under charge of an officer, until at least three-fourths of them agree upon a verdict or are discharged by the court. Unless by order of the court, the officer having them under his or her charge shall not permit any communication to be made to them, including any form of electronic or wireless communication, or make any himself or herself, except to ask them if they or three-fourths of them are agreed upon a verdict. The officer shall not, before their verdict is rendered, communicate to any person the state of their deliberations, or the verdict agreed upon.

(Amended by Stats. 2011, Ch. 181, Sec. 2. (AB 141) Effective January 1, 2012.)

Code of Civil Procedure section 614

Code of Civil Procedure - CCP

PART 2. OF CIVIL ACTIONS | TITLE 8. OF THE TRIAL

AND JUDGMENT | CHAPTER 4. Trial by Jury | ARTICLE 2.
Conduct of the Trial

614.

After the jury have retired for deliberation, if there be a disagreement between them as to any part of the testimony, or if they desire to be informed of any point of law arising in the cause, they may require the officer to conduct them into Court. Upon their being brought into Court, the information required must be given in the presence of, or after notice to, the parties or counsel.

(Enacted 1872.)

Code of Civil Procedure section 647

Code of Civil Procedure - CCP

PART 2. OF CIVIL ACTIONS [307 - 1062.34] (Part 2 enacted 1872.) TITLE 8. OF THE TRIAL AND JUDGMENT IN CIVIL ACTIONS [577 - 674] (Title 8 enacted 1872.) CHAPTER 7. Provisions Relating to Trials in General [646 - 663.2] (Chapter 7 enacted 1872.) ARTICLE 1. Exceptions [646 - 647] (Article 1 enacted 1872.)

647.

All of the following are deemed excepted to: the verdict of the jury; the final decision in an action or proceeding; an interlocutory order or decision, finally determining the rights of the parties, or

some of them; an order or decision from which an appeal may be taken; an order sustaining or overruling a demurrer, allowing or refusing to allow an amendment to a pleading, striking out or refusing to strike out a pleading or a portion thereof, or refusing a continuance; an order made upon ex parte application, giving an instruction, refusing to give an instruction, or modifying an instruction requested; an order or decision made in the absence of the party or an order granting or denying a nonsuit or a motion to strike out evidence or testimony; a ruling sustaining or overruling an objection to evidence; and any statement or other action of the court in commenting upon or in summarizing the evidence. If the party, at the time when the order, ruling, action or decision is sought or made, or within a reasonable time thereafter, makes known his position thereon, by objection or otherwise, all other orders, rulings, actions or decisions are deemed to have been excepted to.

(Amended by Stats. 1963, Ch. 99.)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT F

California Evidence Code sections 140, 310, and 451

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov). Enactment parentheticals are
those published with the official section text. Curly quotation
marks in the LegInfo publication of section 140 are rendered as
ASCII quotation marks.

Evidence Code section 140

Evidence Code - EVID

DIVISION 2. WORDS AND PHRASES DEFINED [100 - 260]

(Division 2 enacted by Stats. 1965, Ch. 299.)

140.

"Evidence" means testimony, writings, material objects, or other things presented to the senses that are offered to prove the existence or nonexistence of a fact.

(Enacted by Stats. 1965, Ch. 299.)

Evidence Code section 310

Evidence Code - EVID

DIVISION 3. GENERAL PROVISIONS [300 - 413] (Division 3 enacted by Stats. 1965, Ch. 299.)

CHAPTER 2. Province of Court and Jury [310 - 312] (Chapter 2 enacted by Stats. 1965, Ch. 299.)

310.

- (a) All questions of law (including but not limited to questions concerning the construction of statutes and other writings, the admissibility of evidence, and other rules of evidence) are to be decided by the court. Determination of issues of fact preliminary to the admission of evidence are to be

decided by the court as provided in Article 2 (commencing with Section 400) of Chapter 4.

- (b) Determination of the law of an organization of nations or of the law of a foreign nation or a public entity in a foreign nation is a question of law to be determined in the manner provided in Division 4 (commencing with Section 450).

(Enacted by Stats. 1965, Ch. 299.)

Evidence Code section 451

Evidence Code - EVID

DIVISION 4. JUDICIAL NOTICE [450 - 460] (Division 4 enacted by Stats. 1965, Ch. 299.)

451.

Judicial notice shall be taken of the following:

- (a) The decisional, constitutional, and public statutory law of this state and of the United States and the provisions of any charter described in Section 3, 4, or 5 of Article XI of the California Constitution.
- (b) Any matter made a subject of judicial notice by Section 11343.6, 11344.6, or 18576 of the Government Code or by Section 1507 of Title 44 of the United States Code.
- (c) Rules of professional conduct for members of the bar adopted

pursuant to Section 6076 of the Business and Professions Code and rules of practice and procedure for the courts of this state adopted by the Judicial Council.

- (d) Rules of pleading, practice, and procedure prescribed by the United States Supreme Court, such as the Rules of the United States Supreme Court, the Federal Rules of Civil Procedure, the Federal Rules of Criminal Procedure, the Admiralty Rules, the Rules of the Court of Claims, the Rules of the Customs Court, and the General Orders and Forms in Bankruptcy.
- (e) The true signification of all English words and phrases and of all legal expressions.
- (f) Facts and propositions of generalized knowledge that are so universally known that they cannot reasonably be the subject of dispute.

(Amended by Stats. 1986, Ch. 248, Sec. 43.)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT G

Judicial Council of California Civil Jury Instruction CACI No.
401, Basic Standard of Care, including Sources and Authority

Notice basis: Evidence Code, section 452, subdivision (c).

Source: Judicial Council of California Civil Jury Instructions (2026 edition), as adopted by the Judicial Council December 2025, official PDF hosted at courts.ca.gov, instruction beginning at PDF page 311 (folio 237). Secondary Sources (treatise lists) are omitted. Ligatures and en dashes in the source PDF are rendered in ASCII. The 2026 Judicial Council edition does not include a separate Directions for Use paragraph for CACI No. 401.

401. Basic Standard of Care

Negligence is the failure to use reasonable care to prevent harm to oneself or to others.

A person can be negligent by acting or by failing to act. A person is negligent if that person does something that a reasonably careful person would not do in the same situation or fails to do something that a reasonably careful person would do in the same situation.

You must decide how a reasonably careful person would have acted in [name of plaintiff/defendant]'s situation.

New September 2003; Revised May 2020

Sources and Authority

- "The formulation of the standard of care is a question of law for the court. Once the court has formulated the standard, its application to the facts of the case is a task for the trier of fact if reasonable minds might differ as to whether a party's conduct has conformed to the standard." (Ramirez v. Plough, Inc. (1993) 6 Cal.4th 539, 546 [25 Cal.Rptr.2d 97, 863 P.2d 167], internal citations omitted.)
- The California Supreme Court has stated: "Because application of [due care] is inherently situational, the amount of care deemed reasonable in any particular case will vary, while at the same time the standard of conduct itself remains constant, i.e., due care commensurate with the risk

posed by the conduct taking into consideration all relevant circumstances. [Citations]." (Flowers v. Torrance Memorial Hospital Medical Center (1994) 8 Cal.4th 992, 997 [35 Cal.Rptr.2d 685, 884 P.2d 142]; see also Tucker v. Lombardo (1956) 47 Cal.2d 457, 464 [303 P.2d 1041].)

- The proper conduct of a reasonable person in a particular situation may become settled by judicial decision or may be established by statute or administrative regulation. (Ramirez, *supra*, 6 Cal.4th at p. 547.) (See CACI Nos. 418 to 421 on negligence per se.)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT H

Judicial Council of California Civil Jury Instruction CACI No. 418, Presumption of Negligence per se, including Directions for Use and Sources and Authority, and California Evidence Code section 669

Notice basis: Evidence Code, section 452, subdivision (c) (CACI No. 418); Evidence Code, section 451, subdivision (a) (Evid. Code, section 669).

Source: Judicial Council of California Civil Jury Instructions (2026 edition), as adopted by the Judicial Council December 2025, official PDF hosted at courts.ca.gov, instruction beginning at PDF page 338 (folio 264). Secondary Sources (treatise lists) are omitted. Ligatures and en dashes in the source PDF are rendered in ASCII. Evidence Code section 669 is the currently operative public statutory text from California Legislative Information ([leginfo.legislature.ca.gov](https://leginfo.ca.gov)), harvested into CASE-LAW-AND-STATUTES/statutes-cal/EVID-669.md. Enactment parentheticals are those published with the official section text.

418. Presumption of Negligence per se

[Insert citation to statute, regulation, or ordinance] states:

.

If [name of plaintiff/defendant] proves

1. That [name of defendant/plaintiff] violated this law and
2. That the violation was a substantial factor in bringing about the harm,

then you must find that [name of defendant/plaintiff] was negligent [unless you also find that the violation was excused].

If you find that [name of defendant/plaintiff] did not violate this law or that the violation was not a substantial factor in bringing about the harm [or if you find the violation was excused], then you must still decide whether [name of defendant/plaintiff] was negligent in light of the other instructions.

New September 2003; Revised December 2005, June 2011, November 2020

Directions for Use

This jury instruction addresses the establishment of the two factual elements underlying the presumption of negligence. If they are not established, then a finding of negligence cannot be based on the alleged statutory violation. However, negligence can still be proven by other means. (See *Nunneley v. Edgar Hotel* (1950) 36

Cal.2d 493, 500 to 501 [225 P.2d 497].)

If a rebuttal is offered on the ground that the violation was excused, then the bracketed portion in the second and last paragraphs should be read. For an instruction on excuse, see CACI No. 420, Negligence per se: Rebuttal of the Presumption of Negligence, Violation Excused.

If the statute is lengthy, the judge may want to read it at the end of this instruction instead of at the beginning. The instruction would then need to be revised, to tell the jury that they will be hearing the statute at the end.

Rebuttal of the presumption of negligence is addressed in the instructions that follow (see CACI Nos. 420 and 421).

Sources and Authority

- Negligence per se. Evidence Code section 669.
- " '[T]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.' " (Turner v. Seterus, Inc. (2018) 27 Cal.App.5th 516, 534 [238 Cal.Rptr.3d 528].)
- " 'The negligence per se doctrine is codified in Evidence Code section 669, subdivision (a), under which negligence is presumed if the plaintiff establishes four elements: (1) the defendant violated a statute, ordinance, or regulation;

(2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.' 'The burden is on the proponent of a negligence per se instruction to demonstrate that these elements are met.' " (Taulbee v. EJ Distribution Corp. (2019) 35 Cal.App.5th 590, 596 [247 Cal.Rptr.3d 538], internal citations omitted.)

Evidence Code section 669

Evidence Code - EVID

DIVISION 5. BURDEN OF PROOF; BURDEN OF PRODUCING EVIDENCE; PRESUMPTIONS AND INFERENCES [500 - 670] (Division 5 enacted by Stats. 1965, Ch. 299.)

CHAPTER 3. Presumptions and Inferences [600 - 670] (Chapter 3 enacted by Stats. 1965, Ch. 299.)

ARTICLE 4. Presumptions Affecting the Burden of Proof [660 - 670] (Article 4 enacted by Stats. 1965, Ch. 299.)

669.

(a) The failure of a person to exercise due care is presumed if:

- (1) He violated a statute, ordinance, or regulation of a public entity;
 - (2) The violation proximately caused death or injury to person or property;
 - (3) The death or injury resulted from an occurrence of the nature which the statute, ordinance, or regulation was designed to prevent; and
 - (4) The person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.
- (b) This presumption may be rebutted by proof that:
- (1) The person violating the statute, ordinance, or regulation did what might reasonably be expected of a person of ordinary prudence, acting under similar circumstances, who desired to comply with the law; or
 - (2) The person violating the statute, ordinance, or regulation was a child and exercised the degree of care ordinarily exercised by persons of his maturity, intelligence, and capacity under similar circumstances, but the presumption may not be rebutted by such proof if the violation occurred in the course of an activity normally engaged in only by adults and requiring adult qualifications.

(Added by Stats. 1967, Ch. 650.)

IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE
APPELLATE CASE NO.: A173827
SUPERIOR COURT CASE NO.: CGC-21-594102
GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR, DOES 1-50
Defendants and Respondents

EXHIBIT I

California Vehicle Code section 22352

Notice basis: Evidence Code, section 451, subdivision (a).

Source: California Legislative Information
(leginfo.legislature.ca.gov), Division 11, Chapter 7, Article 1, as harvested 2026-08-19 into CASE-LAW-AND-STATUTES/statutes-cal/VEH-22352.md. The single-section display returns two versions after Stats. 2025, Ch. 555. This exhibit is the currently operative public statutory text (in effect until January 1, 2031). The later-operative version added by Stats. 2025, Ch. 555, Sec. 2, is not attached; it was not in force at trial and is not yet in force. Enactment parentheticals are those published with the official section text. Curly quotation marks in the LegInfo harvest are rendered as ASCII quotation marks.

Vehicle Code section 22352

Vehicle Code - VEH

DIVISION 11. RULES OF THE ROAD | CHAPTER 7. Speed
Laws | ARTICLE 1. Speed Restrictions

22352.

The prima facie limits are as follows and shall be applicable unless changed as authorized in this code and, if so changed, only when signs have been erected giving notice thereof:

(a) Fifteen miles per hour:

(1) When traversing a railway grade crossing, if, during the last 100 feet of the approach to the crossing, the driver does not have a clear and unobstructed view of the crossing and of any traffic on the railway for a distance of 400 feet in both directions along the railway. This paragraph does not apply in the case of any railway grade crossing where a human flagperson is on duty or a clearly visible electrical or mechanical railway crossing signal device is installed but does not then indicate the immediate approach of a railway train or car.

(2) When traversing any intersection of highways, if, during the last 100 feet of the driver's approach to the intersection, the driver does not have a clear and unobstructed view of

the intersection and of any traffic upon all of the highways entering the intersection for a distance of 100 feet along all those highways, except at an intersection protected by stop signs or yield right-of-way signs or controlled by official traffic control signals.

(3) On any alley.

(b) Twenty-five miles per hour:

(1) On any highway in any business or residence district unless a different speed is determined by local authority or the Department of Transportation under procedures set forth in this code.

(2) When approaching or passing a school building or the grounds thereof, contiguous to a highway and posted with a standard "SCHOOL" warning sign, while children are going to or leaving the school either during school hours or during the noon recess period. The prima facie limit shall also apply when approaching or passing any school grounds which are not separated from the highway by a fence, gate, or other physical barrier while the grounds are in use by children and the highway is posted with a standard "SCHOOL" warning sign. For purposes of this subparagraph, standard "SCHOOL" warning signs may be placed at any distance up to 500 feet away from school

grounds.

- (3) When passing a senior center or other facility primarily used by senior citizens, contiguous to a street other than a state highway and posted with a standard "SENIOR" warning sign. A local authority may erect a sign pursuant to this paragraph when the local agency makes a determination that the proposed signing should be implemented. A local authority may request grant funding from the Active Transportation Program pursuant to Chapter 8 (commencing with Section 2380) of Division 3 of the Streets and Highways Code, or any other grant funding available to it, and use that grant funding to pay for the erection of those signs, or may utilize any other funds available to it to pay for the erection of those signs, including, but not limited to, donations from private sources.

- (c) This section shall remain in effect until January 1, 2031, and as of that date is repealed.

(Amended by Stats. 2025, Ch. 555, Sec. 1. (AB 382) Effective January 1, 2026. Repealed as of January 1, 2031, by its own provisions. See later operative version as added by Sec. 2 of Stats. 2025, Ch. 555.)